

SENATE No. 1194

The Commonwealth of Massachusetts

PRESENTED BY:

Mark C. Montigny

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to prevent unscrupulous medical debt recovery practices.

PETITION OF:

NAME:

Mark C. Montigny

DISTRICT/ADDRESS:

Second Bristol and Plymouth

SENATE No. 1194

By Mr. Montigny, a petition (accompanied by bill, Senate, No. 1194) of Mark C. Montigny for legislation to prevent unscrupulous medical debt recovery practices. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1065 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to prevent unscrupulous medical debt recovery practices.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 235 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by inserting after section 34A the following section:-

3 Section 34B. A hospital or community health center licensed by the department of public
4 health shall not seek legal execution against the primary motor vehicle of a patient or a guarantor
5 of a patient nor seek legal execution up to the statutory amount provided for in chapter 188
6 against the principal residence of a patient or a guarantor of a patient, irrespective of whether a
7 declaration of homestead has been recorded for said property.

8 SECTION 2. The department of public health shall promulgate regulations prohibiting a
9 hospital or community hospital or an agent of a hospital or community hospital from seeking

- 10 legal execution against a primary motor vehicle or principal residence pursuant to section 34B of
- 11 chapter 235 within 180 days of the effective date of this act.